

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 24-24

S.P.F. LOGISTICS, INC.,

COMPLAINANT,

v.

HAPAG-LLOYD AG,

RESPONDENTS.

**JOINT REPORT OF PARTIES AND PROPOSED SCHEDULING AND
DISCOVERY ORDER**

Pursuant to Federal Rule of Civil Procedure 26(f) and FMC Rules § 502.141(b), (h), the parties have conferred with attorney Theodore H. Adkinson representing S.P.F. Logistics, Inc. and attorney Wayne R. Rohde and Rachel Schwartz representing Hapag-Lloyd AG (“Hapag”).

SCHEDULING AND DISCOVERY PLANS WERE DISCUSSED AND AGREED TO AS FOLLOWS:

1. The parties have exchanged their Initial Disclosures.
2. The parties discussed the subjects on which discovery might be needed from the respective parties. This included evidence regarding the availability of scheduling for return of equipment, and communications regarding the same.

3. The parties intend to confer with CADRS pursuant to 46 C.F.R. § 502.64(a)(1), (2) during the week of June 16, 2025.

4. Initial interrogatories, requests for production, and requests for admission, pursuant to Federal Rules of Civil Procedure 33 and 34 shall be served on opposing parties by July 3, 2025.

5. The deadline for production of documents, and any written responses and objections in response to initial discovery requests is August 4, 2025.

6. The deadline for motions to compel is August 20, 2025.

7. The deadline for the completion of non-expert depositions will be September 30, 2025.

8. Discovery shall be completed by October 20, 2025 (no later than 150 days after the service of the respondent's answer to the complaint. FMC R. §502.141(g). Any written interrogatories or request for production served after the date of the Scheduling and Discovery Order shall be served by a date that allows the served parties the full 30 days as provided by the Federal Rules of Civil Procedure in which to answer or produce by the discovery cut-off date, unless otherwise agreed by the Parties or ordered by the Presiding Officer.

8. The deadline for identifying experts and providing expert reports will be September 15, 2025. Rebuttal expert reports, if any, due December 19, 2025.

9. All dispositive motions shall be filed by January 16, 2026.

10. If no dispositive motions are filed, Complainant's opening brief (including exhibits and proposed findings of fact) shall be filed by January 30, 2026. If dispositive motions are filed and the rulings on such motions do not dispose of the matter in whole or in part, Complainant's opening brief shall be due thirty (30) days after the date of the ruling on the dispositive motion(s).

11. Respondent's reply brief (including exhibits, proposed findings of fact and responses to Complainant's proposed findings of fact) shall be due thirty (30) days after the filing of Complainant's opening brief under paragraph 10 above.

12. Complainant's reply brief shall be due fifteen (15) days after the submission of Respondent's reply brief.

Dated: June 16, 2025

Respectfully submitted,

By: /s/ Theodore H. Adkinson
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INC.

Dated: June 16, 2025

Respectfully submitted,

By: /s/ Wayne R. Rohde
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CERTIFICATE OF SERVICE

I certify that on the 16th day of June 2025, I served the above **JOINT REPORT OF PARTIES AND PROPOSED SCHEDULING AND DISCOVERY ORDER** to the parties listed below by electronic mail.

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By: /s/ Ana Cruz
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